Credibility and Reliability Codebook — Version 3

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This codebook covers three analytically distinct but related components, ordered from broader to more specific judicial assessments. The coding structure explains the general workflow; this codebook provides detailed definitions, boundaries, and examples.

Part	Dimension	Unit	Question
I	Acceptance of the complainant's account / prosecution's case	Document (one classification per complainant per ruling)	To what extent is the account or case accepted?
II	Assessment Focus	Relevant text block	What is the court primarily doing?
III	Substantive credibility/ reliability criteria (A1–E3)	Individual criterion assessment	Which considerations are evaluated?

See Coding Structure v3 for general coding procedures. Do not derive one dimension mechanically from another or from the verdict.

General coding rules

These rules apply across the substantive criteria unless a criterion specifies an exception.

1. **Judicial evaluation:** Code only considerations the court evaluates in relation to credibility or reliability. Descriptions, reproduced testimony, or arguments by other parties do not qualify unless the court adopts or evaluates them. The evaluative connection may be explicit or identifiable from context; proximity alone is insufficient.
2. **Finding and Valence:** Finding records what the court establishes about the criterion; Valence records its implications for credibility/reliability. Code independently. Prioritize the court's expressed reasoning; where implications are unstated, use established judicial interpretations only when applicable and never override the court's evaluation.
3. **Multiple assessments:** Code distinct criteria separately. Multiple Findings may be selected within an assessment when appropriate; if different Findings receive different Valences, record separate assessments. Do not duplicate an assessment merely because it is summarized later.
4. **People and attribution:** Criteria apply to complainants and defendants unless specified otherwise. Attribute the assessment to the person whose account the court evaluates.
5. **Notes and Other:** Use Notes for uncertainty and exceptional cases; straightforward assessments need no Note. Specify the evaluated characteristic in Notes when selecting an **Other** Finding.

Part I — Acceptance of the Complainant's Account / Prosecution's Case

Variable: `account_evidentiary_acceptance`
Level: Document
Coding unit: One assessment per complainant per ruling. Rulings involving multiple complainants may receive multiple classifications.

Definition: Records the extent to which the court accepts the complainant's account of the alleged rape, based on its overall assessment of credibility, reliability, and supporting evidence. Where the court evaluates the prosecution's case as a whole, record whether the prosecution's account of the alleged events is considered established.

Categories

Code	Category	Definition
1	Fully accepted	The court accepts the complainant's account concerning the alleged rape in its entirety, or considers the prosecution's account of the relevant events fully established.
2	Partially accepted	The court accepts some elements of the complainant's account or prosecution's case but explicitly finds that other elements have not been established.
3	Not accepted	The court explicitly rejects or disbelieves the complainant's account concerning the alleged rape.
4	Insufficient evidence	The evidentiary threshold is not met without explicit rejection of the complainant's account, whether due to limitations of the account, other evidence, or both.
5	Unclear / cannot be determined	The ruling does not provide sufficient information to determine the extent to which the complainant's account or prosecution's case is accepted.

Coding rules and boundaries

- Record one assessment per complainant per ruling. Consider the complete ruling, especially its overall evidentiary reasoning and conclusions.
- Include rape allegations only; other charges are excluded unless assessed together with rape allegations.
- Focus on the complainant's account or prosecution's case, not the defendant's account.
- Code the court's explicit conclusions; do not infer belief or disbelief when it is not expressed.
- **Acceptance is not equivalent to conviction.** This variable concerns both the complainant's account and the prosecution's case. Base the classification on the court's reasoning, not the verdict alone.
- Distinguish this dimension from D2 (overall/concluding credibility judgment). Do not derive acceptance automatically from D2, Valence, or the verdict.
- If several rape allegations involving the same complainant receive different conclusions, code ne of them and record the rest under Notes for review.

Part II — Assessment Focus

Variable: `assessment_focus`
Unit: One classification per relevant text block.

Definition: Identify the primary function of the court's credibility/reliability reasoning in each included block.

Categories

Code	Category	Definition
1	Direct credibility/reliability assessment	The court primarily evaluates how believable a person or account is, considering characteristics such as consistency, detail, plausibility, contradictions, or motives to lie.
2	Assessment of supporting/ contradicting evidence	The court primarily evaluates whether other evidence supports or undermines an account, including witness testimony, medical evidence, messages, or missing evidence. Includes accepting/rejecting an account on that basis when evidence evaluation is primary.
3	Overall/synthesizing assessment	The court primarily summarizes or combines assessments to reach an overall conclusion about credibility, reliability, or evidentiary strength.
4	Other relevant assessment	Relevant credibility/reliability reasoning outside Codes 1–3; Note required.

Coding rules and boundaries

- Assign exactly one Assessment Focus per included block; repeat it across criterion rows for that block.
- Identify the **primary function** from the main evaluative question and conclusion, not the number of words devoted to a topic.
- Use surrounding context when needed. For assessments spanning blocks, classify each block by its own primary function, unless the split happens in the middle of a sentence (e.g. page break).
- Assessment Focus is distinct from Criterion: B3 (Consistency / support from other evidence) does not automatically imply code 2.

Boundary examples

Code 1 — Direct assessment (despite references to evidence):

> TILLTALAD berättelse är mot bakgrund av att Sekretess A uppvisat tecken på skador på insidan av låren och målsägandenas beskrivna sinnesstämningar kort tid efter händelserna både verklighetsfrämmande och föga trovärdig.

Code 2 — Evaluation of potentially contradicting evidence (illustrative Swedish example, not an authentic quotation):

> Tingsrätten anser att det förhållandet att ingen av de boende i fastigheten hört några skrik inte försvagar målsägandens berättelse, särskilt med hänsyn till att händelsen inträffade nattetid.

The function is evaluating the significance of missing corroboration, not synthesizing the case as a whole.

Code 3 — Overall synthesis:

> Vid en sammantagen bedömning har tingsrätten kommit fram till att målsägandenas uppgifter om händelserna får ett mycket starkt stöd av den övriga bevisningen som presenterats.

Part III — Substantive Credibility and Reliability Criteria

The following criteria identify the characteristics or considerations evaluated by the court.

A. Content of the account

A1 — Detail / richness of detail

Evaluation of the amount, specificity, concreteness, or richness of information in an account. This concerns whether the court considers an account detailed or lacking in detail, either overall or in particular parts.

Boundary conditions:

- Do not infer detail merely because the judgment itself recounts many details. The court must evaluate the level of detail.
- Do not automatically equate detail with length (A2) or clarity (A3).
- If the court evaluates both the level of detail and whether that level of recollection is reasonable under the circumstances, code both A1 and A15 (Memory / Recollection).

Example:

"(…) har lämnat en utförlig och relativt detaljerad berättelse (…)"

A1 — Findings

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Finding	Examples / guidance
Detailed	"detaljerad"; "utförlig"
Not detailed	"inte detaljerad"; "brist på detaljer"; "vag"
Partially detailed	"detaljerad i vissa delar"
Partially not detailed	"saknar detaljer i vissa delar"; "brist på detaljer i avgörande delar"

A2 — Length / extensiveness

Evaluation of the length or extensiveness of an account as a whole or in particular parts. This concerns whether the court considers an account long, extensive, brief, or short.

Boundary condition:

Do not automatically equate length with richness of detail (A1). An account may be long without being detailed, or short while containing specific details.

Example:

"(…) har lämnat en lång berättelse (…)"

A2 — Findings

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Finding	Examples / guidance
Long	"lång berättelse"
Short	"kortfattad i de centrala delarna"
Partially long	"lång i vissa delar"; "utförlig beträffande de centrala händelserna"
Partially short	"kortfattad i vissa delar"; "särskilt kortfattad om vissa omständigheter"

A3 — Clarity

Evaluation of whether an account is clear, precise, or unclear. This concerns whether the person communicates their account in a manner that is understandable and sufficiently clear.

Boundary conditions:

- Lack of detail is not automatically lack of clarity (A1). An account can be brief or lacking in detail while still being clearly expressed.
- If the account is deemed to be/not to be connected and logical code this as A4.

Example:

"Detta gäller särskilt som hon varit mycket tydlig vid redogörelsen för de centrala delarna av händelseförloppet, dvs. vad som hände efter att hon vaknade till igen i sängen."

A3 — Findings

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Finding	Examples / guidance
Clear	"tydlig"; "klar redogörelse"
Not clear	"otydlig"
Partially clear	"tydlig i vissa delar"; "tydlig om de centrala händelserna"
Partially not clear	"otydlig i vissa delar"; "svårt att förstå vissa delar"

A4 — Coherence / logical structure

Evaluation of whether an account forms a coherent, connected, and logically structured narrative. This concerns whether the account is presented in a manner that is understandable and follows a coherent sequence (*sammanhängande/osammanhängande*).

Boundary conditions:

- Code A4 when the court explicitly evaluates whether an account is coherent, connected, or logically structured.
- Do not code A4 when the court evaluates whether an account contains internal contradictions (*motsägelser*). Such assessments belong under A13.
- Differences between accounts given on separate occasions belong under B1 (Consistency across statements / occasions).
- An account may be coherent even if it contains contradictions, and vice versa. If the court explicitly evaluates both coherence and internal contradictions, code both A4 and A13.

Examples:

- "Sekretess X har lämnat en (…) sammanhängande (…) berättelse."
- "Målsäganden har lämnat en osammanhängande berättelse som varit svår att följa."
- "Den tilltalades redogörelse har varit logiskt uppbyggd och lätt att följa."

A4 — Findings
The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Finding	Examples / guidance
Coherent	"sammanhängande"; "framstår som logisk"
Incoherent	"osammanhängande"; "svår att följa"
Partially coherent	"sammanhängande i vissa delar"
Partially incoherent	"delvis osammanhängande"

A5 — Vividness / liveliness

Evaluation of whether an account has a vivid and/or lively quality. This concerns whether the court considers the account to be presented in a vivid, lively, or engaging manner, or notes the absence of these characteristics.

Boundary condition:

Do not infer vividness merely because an account is detailed (A1). The court must evaluate the vivid or lively quality of the account.

Example:

"Hon har gett en levande beskrivning av händelsen."

A5 — Findings
The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Finding	Examples / guidance
Lively	"levande beskrivning"
Not lively	"inte levande"; "saknar livfullhet"
Partially lively	"levande i vissa delar"; "särskilt levande om de centrala händelserna"
Partially not lively	"mindre levande i vissa delar"; "saknar livfullhet i vissa avsnitt"

A6 — Plausibility / realism

Evaluation of whether an account or the described course of events appears plausible, reasonable, realistic, probable, possible, or the opposite (*rimlig/orimlig, sannolik/osannolik, trovärdigt/otrovärdigt händelseförlopp*).

This concerns the court's assessment of whether the account or described events could reasonably have occurred as described.

Boundary conditions:

- Code A6 when the court explicitly evaluates whether an account or described course of events is plausible, reasonable, realistic, or probable.
- Explicit mentions of difficult-to-explain elements belong to A9.
- If the court explicitly evaluates both the plausibility of an account and the presence of difficult-to-explain elements, code both A6 and A9.

Examples:

- "Den tilltalades uppgifter om vad som hänt under kvällen är i sig inte orimliga."
- "Tingsrätten anser att målsägandens beskrivning av händelseförloppet framstår som rimlig."
- "Den tilltalades förklaring till händelseförloppet framstår som osannolik."
- "Berättelsen framstår som verklighetsfrämmande"

A6 — Findings

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Finding	Examples / guidance
Plausible	"rimlig"; "inte orimlig"
Implausible	"orimlig"; "osannolik"; "ingen rimlig förklaring"
Partially plausible	"delvis rimlig"; "rimlig i vissa delar"
Partially implausible	"inte helt rimlig i vissa delar"

A7 — Errors / demonstrable incorrectness

Evaluation of whether the court explicitly identifies demonstrable factual errors in an account or explicitly finds that no such errors are present.

Boundary conditions:

- Implausibility alone is **A6**; contradiction by other evidence alone is **B3**. A7 requires an additional explicit finding of factual incorrectness.

- Deliberate fabrication is **C2**, not automatically A7. Code both only if factual incorrectness is also expressly evaluated.

Examples:

- "Tingsrätten konstaterar att den tilltalades uppgift om tidpunkten för händelsen är felaktig."
- "Berättelsen verkar inte innehålla några påvisbara felaktigheter."

A7 — Findings

Finding	Examples / guidance
Present	"påvisbara felaktigheter"; "konstaterade sakfel"
Not present	"inga påvisbara felaktigheter"; "inga konstaterade sakfel"

A8 — Exaggeration

Evaluation of whether an account contains exaggerations or overstatements (*överdrifter*), or is explicitly described as being free from exaggeration.

This concerns whether the person exaggerates aspects of their account or describes events in an overstated manner.

Boundary conditions:

- Code A8 when the court explicitly evaluates whether an account contains exaggerations or overstatements, or notes their absence.
- Do not code A8 merely because the court describes an account as restrained (*återhållsam*) or balanced. Such assessments belong under A14 (Balanced account).
- Do not code A8 merely because a person provides information that is unfavorable to themselves or favorable to the other party. Such assessments belong under A14.
- If the court explicitly evaluates both exaggeration and the balanced or restrained nature of an account, code both A8 and A14.

Examples:

- "Berättelsen (…) ger inte sken av att innehålla överdrifter."
- "Målsägandens berättelse har inte präglats av några överdrifter."
- "Den målsägande verkar har överdrivit vad som inträffade."

A8 — Findings

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Finding	Examples / guidance
Present	"innehåller överdrifter"; "överdrivit delar av händelseförloppet"
Not present	"inga överdrifter"; "fri från överdrifter"

A9 — Difficult-to-explain elements

Evaluation of particular elements of an account that the court explicitly considers difficult to explain, understand, or reconcile (*svårförklarliga inslag*), including explicit statements that such elements are absent.

Boundary conditions:

- **A9 versus A6:** A9 concerns identified difficult-to-explain elements; A6 concerns general plausibility or realism. Code both only when both considerations are evaluated.
- Do not treat every statement that an alleged event or behavior seems improbable or hard to believe as A9.

Examples:

- "Den [berättelsen] innehåller inga motsägelser eller svårförklarliga inslag." (Code A9: **Not present**; A13: no contradictions.)
- "Målsägandens berättelse innehåller flera svårförklarliga inslag." (Code A9: **Present**.)

A9 — Findings

Finding	Examples / guidance
Present	"svårförklarliga inslag"; "svårt att förstå"; "obegripliga inslag"
Not present	"inga svårförklarliga inslag"

A10 — Hesitation / uncertainty

Evaluation of hesitation, doubt, or uncertainty concerning parts of an account. This concerns whether the person provides a definite account of central events or expresses uncertainty about what occurred.

Boundary condition:

Do not use A10 for nervous physical presentation or body language. Such assessments belong under D4 (Body language / nonverbal demeanor).

Example:

- "Han har inte kunnat ge någon entydig redogörelse för vad som hände just då."
- "Hon var osäker på de centrala delarna av händelseförloppet."
- "Målsäganden verkar vara väldigt säkert på vad som hände."

A10 — Findings

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Suggestion:

Finding	Examples / guidance
Present	"uncertain"; "uncertain, but irrelevant due to evidence"
Not present	"free from hesitation"

A11 — Spontaneity / free narrative

Evaluation of whether an account is provided spontaneously, freely, or without prompting, including whether the person can answer questions spontaneously when asked.

This concerns whether the person can recount events or provide relevant information without extensive questioning, prompting, or assistance, as well as whether they can respond readily to questions about the events.

Examples:

- "Målsäganden har lämnat en spontan och fri berättelse om händelseförloppet."

- "Den tilltalade har på ett naturligt och spontant sätt kunnat besvara de frågor som ställts till honom."
- "Målsägandens berättelse har inte kommit spontant, utan uppgifterna har framkommit först efter upprepade frågor."
- "Den tilltalade har haft svårt att besvara frågor om händelseförloppet och har endast efter omfattande följdfrågor kunnat lämna närmare uppgifter."

A11 — Findings

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Finding	Examples / guidance
Present	"fri berättelse"; "spontan"; "kunde spontant besvara frågor"
Not present	"inte spontan"; "uppgifterna framkom först efter upprepade frågor"

A12 — Self-experienced

Evaluation of whether an account is presented in a manner suggesting that the person has personally experienced the events described.

This concerns whether the court considers the account to have the characteristics of a genuinely self-experienced narrative (*självupplevd*).

Boundary condition:

Do not code A12 merely because the court accepts an account as credible or reliable. The court must specifically evaluate whether the account appears self-experienced.

Example:

"Berättelsen framstår som självupplevd (…)"

A12 — Findings

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Finding	Examples / guidance
Self-experienced	"framstår som självupplevd"
Not self-experienced	"verkar inte självupplevd"

A13 — Contradictions

Evaluation of whether an account contains internal contradictions (*motsägelser*), meaning that different parts of the same account are inconsistent with one another.

This concerns contradictions within a single account, rather than differences between accounts given on separate occasions.

Boundary conditions:

- Code A13 when the court explicitly evaluates the presence or absence of internal contradictions within an account.
- Do not code A13 merely because the court describes an account as coherent or incoherent (*sammanhängande/osammanhängande*). Such assessments belong under A4.

- Differences between accounts given by the same person on separate occasions belong under B1 (Consistency across statements / occasions).
- Differences between accounts given by different people belong under B2 (Between-person consistency).
- If the court explicitly evaluates both coherence and internal contradictions, code both A4 and A13.

Examples:

- "Redogörelsen innehåller motsägelser."
- "Målsägandens berättelse har inte innehållit några motsägelser."
- "Den tilltalade har lämnat motstridiga uppgifter om händelseförloppet."

A13 — Findings
The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Finding	Examples / guidance
Present	"innehåller motsägelser"; "motstridiga uppgifter inom samma berättelse"
Not present	"inga motsägelser"; "berättelsen innehåller inte några motsägelser"

A14 — Balanced account

Evaluation of whether an account is balanced or restrained (*balanserad/återhållsam*), including the court's assessment of information unfavorable to the speaker or favorable to the other party.

Boundary condition:

- **A14 versus A8:** Absence of exaggeration (A8) does not automatically establish balance or restraint (A14), and vice versa. Do not infer balance merely from the presence of favorable and unfavorable details without judicial evaluation.

Examples:

- "Målsäganden har även lämnat uppgifter som är till fördel för den tilltalade, vilket stärker tilltron till hennes berättelse."
- "Den tilltalade har också berättat om omständigheter som är till nackdel för honom själv, vilket talar för att hans uppgifter är tillförlitliga."

A14 — Findings

Finding	Examples / guidance
Balanced	"återhållsam berättelse"; "uppgifter till fördel för den tilltalade"
Not balanced	"ensidig framställning"; "inte återhållsam"

A15 — Memory/Recollection

Evaluation of whether a person's recollection or lack of recollection is reasonable under the circumstances, or whether missing memory limits the court's ability to assess the account.

Boundary conditions:

- Merely reporting that a person cannot remember does not suffice: the court must evaluate recollection or its implications.
- **A1 versus A15:** The amount of detail is A1; whether that level of recollection is reasonable is A15. Code both when both are evaluated.
- When the court separately assesses whether recollection is expected and how memory loss limits evaluation, record **two A15 assessments**, each with its appropriate Finding.

Examples:

- "Det framstår som anmärkningsvärt att den tilltalade inte minns en så central del av händelseförloppet."
- "Eftersom den tilltalade uppgett att han inte minns något av händelsen saknas förutsättningar att bedöma tillförlitligheten i hans uppgifter om händelseförloppet."

A15 — Findings

Finding	Examples / guidance
Recollection as expected	"naturligt att inte minnas alla detaljer"; "minnesbilden är rimlig med hänsyn till tiden som gått"
Recollection not as expected	"anmärkningsvärt att inte minnas"; "orimligt med hänsyn till tiden som gått"
Lack of memory	"uppgifterna kan inte bedömas eftersom den tilltalade inte minns händelsen"; "kan bara bedömas i de delar personen minns"

Finding distinction:

- **Recollection as expected / not as expected** evaluates the reasonableness of remembering or forgetting;
- **Lack of memory** records that missing recollection limits or prevents evaluation, without necessarily judging its reasonableness.

B. Consistency and correspondence

B1 — Consistency across statements / occasions

Evaluation of whether the same person's account changes or remains consistent across different occasions.

This includes additions, omissions, and changes between police interviews, hearings, or other occasions on which the person provided an account.

Boundary conditions:

- Code B1 when the court evaluates consistency between accounts provided by the same person on different occasions.
- Contradictions within a single account belong under A13 (Contradictions).
- Comparisons between the complainant's and defendant's accounts belong under B2 (Between-party consistency).

Example:

"Hon har i polisförhör lämnat olika uppgifter beträffande vissa detaljer kring gärningen och i några avseenden har även berättelsen hon lämnat i tingsrätten avvikit från uppgifterna i polisförhör."

Coding note: The second clause compares district court testimony with police interviews and qualifies as **B1**. The first clause qualifies as **A13** only if the inconsistent details occur within one police-interview account; if they occur between separate police interviews, code **B1**. The excerpt alone does not establish which interpretation applies.

B1 — Findings
The finding section is used to provide further details for the respective codes. Below are the proposed response alternatives available and their respective examples.

Finding	Examples / guidance
Consistent	"uppgifterna är samstämmiga mellan förhören"
Inconsistent	"uppgifterna skiljer sig mellan förhören"; "avvikelserna förklaras av målsäganden"

B2 — Between-party consistency

Evaluation of whether the complainant's and defendant's accounts correspond with or contradict one another, when the court uses this comparison as part of a credibility/reliability assessment.

This criterion concerns comparisons between the complainant's and defendant's versions of events, rather than comparisons involving witnesses or other evidence.

Boundary conditions:

- Code B2 when the court compares the complainant's and defendant's accounts as part of a credibility/reliability assessment.
- The court does not need to explicitly state that the correspondence or discrepancy strengthens or weakens credibility. It is sufficient that the comparison forms part of an identifiable credibility/reliability assessment.
- Do not code B2 when the court merely establishes that the complainant and defendant provide different versions of events without using this comparison as part of a credibility/reliability assessment.
- B2 applies exclusively to comparisons between complainants and defendants. Comparisons involving witness statements or other evidence belong under B3 (Consistency / support from other evidence).
- Attribute B2 to the person whose account the court is evaluating. If it is genuinely unclear whose account is being assessed, record the uncertainty in Notes rather than automatically assigning the code to one individual.
- Differences between accounts given by the same person on separate occasions belong under B1 (Consistency across statements / occasions).

Examples:

- "Den tilltalade har lämnat en utförlig och detaljerad berättelse. Hans uppgifter överensstämmer dock inte i alla delar med målsägandens berättelse."
  (Code A1 and B2 for the defendant.)
- "Målsägandens berättelse överensstämmer i huvudsak med den tilltalades uppgifter, vilket stärker tilltron till hennes redogörelse."
  (Code B2 for the complainant.)

- "Målsägandens och den tilltalades berättelser skiljer sig åt beträffande vad som inträffade i sovrummet."
  (Do not code B2 if this merely describes the different versions of events without forming part of a credibility/reliability assessment.)

B2 — Findings

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Finding	Examples / guidance
Consistent	"överensstämmer med målsägandens berättelse"; "uppgifterna är förenliga med den tilltalades redogörelse"
Inconsistent	"överensstämmer inte med målsägandens berättelse"; "olika uppgifter om tidsförloppet"

B3 — Consistency / support from other evidence (former B4)

Evaluation of whether evidence external to a person's account supports, corresponds with, contradicts, or undermines that account as part of the court's credibility/reliability reasoning. Evidence may include witness testimony, medical, forensic, technical, or other case evidence.

Boundary conditions and coding unit:

- Include **explicit** connections (the court directly relates evidence to an account) and **implicit** connections identifiable from the surrounding credibility/reliability reasoning. Do not include independent fact-finding, mere presentation of evidence, or evidence merely located near credibility reasoning.
- Comparisons between complainant and defendant accounts belong under **B2**; comparisons involving witnesses or other external evidence belong under **B3**.
- Evaluations of disclosure itself belong under **E2**; if the court separately evaluates whether witness evidence corroborates the account, also code **B3**.
- Code each individual evidence source separately, including each witness even when evaluated collectively. Code substantively distinct evaluations of the same source separately.
- Do not add B3 for a conclusion merely summarizing evidence already evaluated. Add a new B3 assessment only for a new evidence source or a substantively new evaluation of previously discussed evidence, including within broader legal reasoning.

Boundary examples:

- **Implicit connection — include B3:** Within a sustained credibility assessment, the court considers the absence of witnesses hearing screams or visible injuries as potentially contradicting evidence.
- **Repeated synthesis — no additional B3:** After separately evaluating messages and witness evidence as supporting the complainant's account, the court concludes that the overall evidence establishes the alleged events. Do not create a second B3 entry for the summary alone.

B3 — Findings

Finding	Examples / guidance
Supported	"får stöd av vittnesuppgifter"; "överensstämmer med övrig bevisning"
Not supportive	"får inte stöd av bevisningen"; "motsägs av den tekniska bevisningen"
Partially supported	"får visst stöd av utredningen"
Partially not supported	"får i vissa delar inte stöd av utredningen"
Inconclusive	"bevisningen ger varken stöd för eller emot uppgifterna"

C. Person motivations

C1 — Motive to lie

Evaluation of whether a person has or lacks a possible motive or incentive to provide false or misleading information (e.g., conflict, revenge, self-protection). **C1 concerns a possible motive, not whether the person actually lied.**

Boundary conditions:

- Do not infer C1 merely from a defendant's general interest in avoiding conviction; the court must evaluate that motivation.
- **C1 versus C2:** C2 concerns alleged fabrication or deliberate distortion. Code both only when both a motive and fabrication are evaluated.
- **Source attribution is specific to C1:** Retain the distinction between a motive the court discusses without explicitly attributing it to another party and a motive the court explicitly presents as raised by the defense or another party. In either case, the court must evaluate the argument.

Examples:

- "Mot bakgrund av den tidigare konflikten mellan parterna har målsäganden kunnat ha ett motiv att lämna felaktiga uppgifter om den tilltalade."
- "Försvaret har gjort gällande att målsäganden haft anledning att lämna falska uppgifter på grund av en tidigare konflikt. Tingsrätten anser dock att det inte finns något stöd för att hon skulle ha haft ett sådant motiv."

C1 — Findings

Finding	Examples / guidance
Motive to lie	"haft anledning att lämna felaktiga uppgifter"; "motiv att lämna falska uppgifter"
No motive to lie	"saknas anledning att lämna felaktiga uppgifter"
Motive to lie (others)	"försvaret har gjort gällande att målsäganden har motiv att ljuga" (när domstolen instämmer)
No motive to lie (others)	"försvarets påstående om motiv att ljuga saknar stöd"

Finding attribution: Use **Motive to lie / No motive to lie** when the court does not explicitly attribute the motive argument to another party; use the corresponding **(others)** Finding when it explicitly does.

C2 — Fabrication / deliberate distortion

Evaluation of whether a person fabricated, deliberately distorted, or intentionally adapted an account to mislead, including the court's explicit rejection of that possibility.

Boundary conditions:

- **C2 versus C1:** A possible motive to lie is C1; fabrication or deliberate adaptation is C2. Code both if both are evaluated.
- Incorrectness, inconsistency, implausibility, or an adverse verdict does not by itself establish deliberate fabrication.

Examples:

- "Den tilltalades förklaring framstår som en efterhandskonstruktion."
- "Tingsrätten anser att den tilltalade har anpassat sin berättelse efter de uppgifter som framkommit under utredningen."
- "Målsägandens berättelse framstår inte som någon efterhandskonstruktion." (**Finding: No fabrication.**)

C2 — Findings

Finding	Examples / guidance
Fabrication	"efterhandskonstruktion"; "tillrättalagd berättelse"; "anpassat sin berättelse efter bevisningen"
No fabrication	"ingen efterhandskonstruktion"; "inte medvetet lämnat oriktiga uppgifter"

D. Overall credibility, presentation, demeanor and affect

D1 — Unelaborated credibility assessment

The court states that a person or their account is credible, reliable, truthful, authentic, or the opposite, without articulating another credibility/reliability criterion that explains that assessment.

The defining feature is that the credibility assessment itself is expressed without an articulated underlying criterion explaining why.

Boundary conditions:

- Code D1 when the court makes a credibility/reliability assessment without providing an identifiable criterion explaining it.
- If the court provides an overall conclusion following an assessment involving other criteria, code D2 (Overall / concluding credibility judgment).
- Do not code D1 merely because the court reaches a guilty or not-guilty verdict. The court must evaluate the credibility or reliability of a person's account.

Example:

- "Målägandens har gjort ett trovärdigt intryck."
- "Det saknas anledning att ifrågasätta hennes uppgifter om att hon sover djupt och känner sig berusad när hon tar sömntabletter" (**D1, not C2:** the court expresses confidence in the account without evaluating deliberate fabrication or distortion.)

D1 — Findings

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Finding	Examples / guidance
Credible	"credible"; "tillförlitlig"; "statement is credible"
Not credible	"inte tillförlitlig"

D2 — Overall / concluding credibility judgment

The court gives an overall credibility/reliability conclusion after assessing the person or their account through one or more other credibility/reliability criteria. The underlying criteria should still be coded separately when present.

Boundary conditions:

- Code D2 when the court explicitly draws an overall conclusion about credibility or reliability based on its assessment of other criteria.
- Do not code D2 merely because the court reaches a guilty or not-guilty verdict. The conclusion must concern the credibility or reliability of a person's account.
- When the court makes an unelaborated credibility assessment without identifiable supporting criteria, code D1 instead.
- Code the underlying criteria separately when they are explicitly evaluated.

Example:

"(…) att målsägandens utsaga inte innehåller alla de kännetecken som kan innebära att en utsaga bedöms trovärdig"

- "Efter en samlad bedömning av bevisningen anser tingsrätten att målsägandens berättelse framstår som trovärdig." (**Finding: Credible.**)

D2 — Findings

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Finding	Examples / guidance
Credible	"trovärdig"; "sammanfattningsvis tillförlitlig"
Not credible	"inte trovärdig"; "den samlade bedömningen ger inte stöd för tillförlitlighet"

D3 — Emotional expression

Evaluation of a person's emotional expressions, emotional states, or reactions as relevant to credibility/reliability, including their absence. D3 applies regardless of when the reaction occurred or whether the court observed it directly or learned of it through witnesses.

Boundary conditions:

- Emotional expression belongs under **D3**, rather than **D4** (physical/nonverbal demeanor) or **E1** (post-event actions), when the court evaluates its emotional component.
- Witness-reported emotional reactions can be **D3**; the source being a witness does not automatically make them **B3**. Also code B3 if the court separately evaluates correspondence between witness evidence and the account.

- Do not infer fear, enjoyment, or other emotions from freezing, passivity, physiological arousal, or physical behavior alone. They are D3, if after, or E3, if during, the event.

Examples:

- "Vittnenas uppgifter om att målsäganden var märkbart skärrad efter händelsen stärker tilltron till hennes berättelse."
- "Målsäganden har berättat om händelsen utan att visa några känslor." **Boundary:** this alone is a description, not D3, unless the court evaluates its credibility/reliability implications.

D3 — Findings

Finding	Examples
Distress / unpleasant emotional state	"ledsen"; "uppriven"; "rädd"; "arg"; "grät"; "försämrat mående"
Positive affect / pleasant emotional state	"glad"; "njutning"; "upphetsning"; "tillgivenhet"
Other — specify in notes	"känslomässigt avtrubbad"; "visade inga känslor"; "känslomässigt neutral"

D4 — Body language / nonverbal demeanor

Evaluation of a person's nonverbal or paraverbal presentation as relevant to the credibility or reliability of their account. This includes gaze, gestures, facial expressions, bodily movements, tone of voice, nervousness, or apparent ease, **when these are evaluated through physical or paraverbal presentation rather than emotional expression**.

Boundary conditions:

- Code D4 when the court evaluates a person's body language or mannerisms as part of a credibility/reliability assessment, regardless of when they occurred.
- Emotional expressions or states, including fear, distress, or nervousness evaluated as an emotion, belong under D3 (Emotional expression).
- Actions following the alleged event, such as contacting the police or maintaining contact with the other party, belong under E1 (Post-event behavior).
- If behavior during the event is described code it as E3, not D4.

Examples:

- "Den tilltalade undvek ögonkontakt under förhöret."
- "Målsägandens lugna och naturliga kroppsspråk stärkte tilltron till hennes berättelse."

D4 — Findings

Finding	Examples
Other — specify in notes	Ange i Notes vilket kroppsspråk, icke-verbalt uttryck eller sätt att framträda som domstolen bedömer.

Clarification of Findings:

- For now, all assessments under D4 receive the Finding *Other*. Coders must briefly specify the body language, nonverbal demeanor, or manner of presentation evaluated by the court in Notes.
- Finding records what the court evaluates, independently of how the nonverbal demeanor affects credibility/reliability (Valence).

- If multiple aspects of nonverbal demeanor are evaluated within one assessment, record all of them in Notes. If they receive different Valences, code them as separate assessments.

E1 — Post-event behavior

Evaluation of a person's actions after the alleged event as relevant to credibility/reliability, such as leaving or staying, contacting the other party, reporting, or seeking assistance.

Boundary conditions:

- Emotional expressions after the event belong under **D3**, not E1.
- Disclosure of the alleged event to friends, family, or others in the person's personal environment belongs under **E2**, even when seeking help. Reporting to police or other authorities belongs under **E1**.
- **Reporting to authorities** includes immediate, delayed, and absent reporting when evaluated by the court. Keep **Seeking professional assistance** distinct.

Examples:

- "Tingsrätten anser att det förhållandet att målsäganden inte lämnade lägenheten efter händelsen inte påverkar tillförlitligheten i hennes uppgifter."
- "Den tilltalade kontaktade målsäganden efter händelsen och bad om ursäkt, vilket enligt tingsrätten inte är förenligt med hans uppgifter om vad som inträffat."

E1 — Findings

Finding	Examples
Leaving / staying	"lämnade platsen efter händelsen"; "stannade kvar"; "lämnade omedelbart"
Contact with the other party	"fortsatte träffa den andra parten"; "skickade meddelanden"; "undvek kontakt"; "bad om ursäkt"
Reporting to authorities	"polisanmälde händelsen"; "anmälde först senare"; "valde att inte anmäla"
Seeking professional assistance	"sökte sjukvård"; "kontaktade vården"; "sökte professionellt samtalsstöd"
Other — specify in notes	"förstörde bevisning"; "ändrade sina rutiner"

E2 — Disclosure to others

Definition:

Evaluation of whether, when, or how a person disclosed the alleged event to others, particularly friends, family members, acquaintances, or other people in their personal environment, when the court uses this disclosure as part of a credibility/reliability assessment.

This includes evaluations of whether the person disclosed the event, refrained from disclosing it, or disclosed it late. Code **Delayed disclosure** when the court evaluates disclosure as delayed; do not impose a fixed time threshold.

Boundary conditions:

- Code E2 when the court evaluates the fact that a person disclosed, or did not disclose, the alleged event to someone in their personal environment as part of a credibility/reliability assessment.
- Disclosure to friends, family members, or other personal contacts belongs under E2, even when the person disclosed the event because they needed assistance.

- When the court evaluates whether the person's account is consistent with what a witness reports that the person previously disclosed, code B3 (Consistency / support from other evidence).
- If the court explicitly evaluates both the disclosure itself and the correspondence between the accounts, code both E2 and B3.
- Reporting the alleged event to the police or contacting authorities for assistance belongs under E1 (Post-event behavior), rather than E2.
- If the court separately evaluates the disclosure and the person's broader post-event behavior, both E1 and E2 may apply.

Examples:

- "Målsäganden berättade kort efter händelsen för sin väninna vad hon hade varit med om."
- "Målsäganden har inte berättat för någon närstående om händelsen förrän långt senare."
- "Att målsäganden redan samma kväll berättade för sin syster om händelsen talar enligt tingsrätten för att hennes uppgifter är tillförlitliga."
- "Målsäganden berättade för sin vän om händelsen eftersom hon behövde hjälp."

E2 — Findings
The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Finding	Examples / guidance
Disclosed	"berättade för ett vittne"; "berättade för sin syster"
Not disclosed	"berättade inte för någon"; "valde att inte berätta om händelsen"
Delayed disclosure	"berättade inte för någon närstående förrän långt senare"; "dröjde med att berätta om händelsen"

E3 — Behavior during the act

Evaluation of a person's behavior during the alleged sexual act as an indicator of the credibility/reliability of **that person's account**. Behavior may be alleged or established through other evidence.

Boundary conditions:

- **A6 versus E3:** General plausibility of the alleged course of events is A6, even when the events involve behavior during the act. E3 requires evaluation of the behavior itself as a credibility/reliability consideration.
- When one person's behavior is used solely to evaluate **another person's account**, code **B2** (between-party accounts) or **B3** (external evidence), as applicable.
- Emotional components belong under **D3** when evaluated; do not infer emotions from freezing or passivity. Behavior after the act belongs under **E1**.
- **Active participation/cooperation** does not necessarily imply voluntariness or consent. Distinguish **Resistance/refusal** from **Violence/force** by the behavior's function in the reasoning; both may apply.

Examples:

- **Include E3:** "Det förhållandet att hon knep ihop läpparna när TILLTALAD försökte ha oralsex innebär, enligt hovrättens mening, inte att det finns skäl att ifrågasätta hennes uppgifter om att hon saknade förmåga att göra motstånd. Omständigheten ger tvärtom stöd för målsägandens uppgift om att hon inte deltog frivilligt i samlaget."

- **Exclude E3; code A6:** "Enligt tingsrätten framstår påståendet om att målsäganden under pågående sexuell samvaro plötsligt skulle ha frågat honom om ett lån av en större summa pengar i sig som mindre sannolikt." This evaluates the plausibility of the defendant's account, not her behavior as a credibility indicator.

E3 — Findings

Finding	Examples / guidance
Resistance / refusal	"knuffade bort"; "knep ihop läpparna"; "protesterade"; "försökte dra sig undan"; "sa nej"
Passivity / freezing	"frös till"; "låg orörlig"; "gjorde inte motstånd"; "låtsades vara medvetslös"
Active participation / cooperation	"tog initiativ till sexuell kontakt"; "besvarade beröring"; "deltog aktivt"
Violence / force	"höll fast"; "hindrade rörelser"; "slog"; "knuffade"; "tvingade till sexuell kontakt"
Other behavior	"ställde frågor"; "skrattade"; "avbröt den sexuella aktiviteten"